

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	17-07-2026 10:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	17-07-2026 10:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Defence
विभाग का नाम / Department Name	Department Of Defence Production
संगठन का नाम / Organisation Name	Bharat Dynamics Limited
कार्यालय का नाम / Office Name	*****
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : bdlldgmcc-ap@nic.in Buyer Email id: bdlvuimm-ap@nic.in
कुल मात्रा / Total Quantity	3
वस्तु श्रेणी / Item Category	Fixed Computer Workstation (Q2) (PAC Only)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Certificate (Requested in ATC), OEM Authorization Certificate, Additional Doc 1 (Requested in ATC), Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है / Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	1

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	2
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	39

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

Manager-IMM

BHARAT DYNAMICS LIMITED HYDERABAD, Department of Defence Production, Bharat Dynamics Limited, Ministry of Defence
(Gunuru Venkata Satish)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

S.No.	Name
1	RXIL
2	M1XCHANGE

मध्यस्थता खंड के समावेश को मंजूरी देने वाले सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority approval for PAC

Competent Authority Approval document for PAC : [View Document](#)

सक्षम प्राधिकारी का नाम/Name of Competent Authority	R SRIDHAR SINGH
सक्षम प्राधिकारी का पद/Designation of Competent Authority	AGM- VU
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	VU-UNIT HEAD
सीए अनुमोदन संख्या/CA Approval Number	001
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	2026-05-25 00:00:00

सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority

Approval Granted by Competent Authority for procurement of Work station

1. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

Fixed Computer Workstation (3 pieces) (Under PAC)

Bis Required	Yes
Make	dell
Model	dellprecision3680tower

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Generic	Description of Stores	A high-performance computing device designed to handle intensive tasks with discrete/dedicated graphic card, minimum standard 1 year warranty
Processor	Processor Number	Intel Core i7-14700, Intel Core i7-13700K, Intel Core i9-13900, Intel Core i9-14900, Intel Core i7-14700K, Intel Core i9-13900K, Intel Core i9-14900K, Intel Core Ultra 7 265K, Intel Core Ultra 9 285K Or higher

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Graphics	Graphic Card Number	NVIDIA T400 4GB, NVIDIA T1000 4GB, NVIDIA T1000 8GB, NVIDIA RTX A400 4GB, NVIDIA RTX A1000 8GB, NVIDIA RTX A2000 12GB, NVIDIA RTX 2000 Ada Generation 16GB, NVIDIA RTX A4000 16GB, NVIDIA RTX 4000 SFF Ada Generation 20GB, NVIDIA RTX 4000 Ada Generation 20GB, NVIDIA A800 40GB Active 40 GB, NVIDIA RTX A4500 20GB, NVIDIA RTX A5000 24GB, NVIDIA RTX 4500 Ada Generation 24GB, NVIDIA RTX A5500 24GB, NVIDIA RTX A6000 48GB, NVIDIA RTX 5000 Ada Generation 32GB, NVIDIA RTX 6000 Ada Generation 48GB, NVIDIA GeForce RTX 5060 8GB, NVIDIA GeForce RTX 5060 Ti 8GB, NVIDIA GeForce RTX 5060 Ti 16GB, NVIDIA RTX PRO 2000 Blackwell 16GB, NVIDIA Geforce RTX 5070 12GB, NVIDIA RTX PRO 4000 Blackwell 24GB, NVIDIA RTX PRO 4000 Blackwell SFF Edition 24GB, NVIDIA RTX PRO 5000 Blackwell 48GB, NVIDIA RTX PRO 6000 Blackwell Max-Q Workstation Edition 96GB, NVIDIA Geforce RTX 5070 Ti 16GB, NVIDIA Geforce RTX 5080 16GB, NVIDIA RTX PRO 6000 Blackwell Workstation Edition 96GB, NVIDIA RTX PRO 4500 Blackwell 32GB, NVIDIA Geforce RTX 5090 32GB, Nvidia Geforce RTX 4090 24 GB Or higher
Operating System	Factory Pre-Loaded Operating System	Windows 11 Professional
Memory	Type of RAM	DDR5 Or higher
	RAM Size Provided with the System (GB)	16, 32, 64, 128, 256, 512, 1024 Or higher
Storage	Primary Storage (Boot Drive) Capacity (in GB)	1024, 2048, 3072, 4096, 5120 Or higher
RAID Connectivity	Controller Type	No RAID
	RAID Level	No RAID
Connectivity	Wireless Connectivity	No Wireless Connectivity, Wi-Fi 5 (802.11ac) + Bluetooth 5.0, Wi-Fi 5 (802.11ac) + Bluetooth 5.1, Wi-Fi 5 (802.11ac) + Bluetooth 5.2, Wi-Fi 6 (802.11ax) + Bluetooth 5.0, Wi-Fi 6 (802.11ax) + Bluetooth 5.1, Wi-Fi 6 (802.11ax) + Bluetooth 5.2, Wi-Fi 6 (802.11ax) + Bluetooth 5.3, Wi-Fi 7(802.11be) + Bluetooth 5.4 Or higher
Monitor	Availability of Monitor	Yes Yes as per IS 13252 (Part 1)
	Screen Size (in CMs)	53.1 - 58 (20.91" - 22.83"), 68.1 - 73 (26.81" - 28.74")

इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	*****	*****Visakhapatnam	3	120

Special terms and conditions-Version:1 effective from 20-02-2025 for category Fixed Computer Workstation

1.

For Buyers		
1	Product Verification	A unique device serial number shall be provided by the seller at the time of supply, which is mentioned on the product. The buyer/consignee shall be able to verify the complete product details, including configuration, through the OEM website. The buyer/consignee should be able to perform these verifications without needing to create an account on the OEM website.
2	Requirement of OEM logo	Buyers are advised to note that incorporating a condition stipulating an OEM logo on the motherboard is restrictive and may not be incorporated into the bids.
3	Warranty	1. The buyer may ensure that as soon as supplies are received, a request for a warranty certificate is made, along with logging into the OEM website/call center to verify the certificate. 2. The product in GeM marketplace (Direct Purchase & L1 purchase) comes with a minimum standard on site warranty of one year. In case the seller has standard warranty more than one year, the same may be mentioned in the catalogue (including in the model name) and in such case higher warranty offered shall prevail/supersede the minimum one year warranty..
4	OM related to MII, Local content and MeitY advice on Model technical specifications	Buyers are requested to refer to various OMs pertaining to DPIIT and MeitY, as issued from time to time, while making procurement and follow relevant provisions as applicable.

5	Check points during Acceptance of Supplies	Before generating the Consignee Receipt and Acceptance Certificate (CRAC), the consignee may inspect the system condition and verify that it complies with the agreed specifications and configurations. In the case of a large number of units to be procured, then the buyer may opt for bidding and accordingly stipulate conditions regarding installation, inspection by consignees/inspection agency. Consignees who receive the supplies should be vigilant and should complete checking to ensure that there is no scope for the supply of refurbished products. At the time of receiving supplies, the consignee may adhere to the following to ensure that any discrepancies in supplies can be flagged, taken into account, and reflected while generating the CRAC: (i) Packing should be checked properly (ii) A warranty certificate from the OEM should be insisted upon and checked. (iii) Instruction manuals and the OS installed should be checked. (iv) The machine serial number should also be checked through settings and can be verified from the OEM website. The above points are for guidance, and the buyer/consignee may take steps considered suitable by them for checking at the consignee end before acceptance of systems. (v) An escalation matrix for customer grievance redressal shall be insisted upon by the buyer from the seller at the time of delivery.
6	HDD/SSD Storage Retention	Buyer may add their requirement of retention of securely store all Hard Disk Drives (HDDs) or Solid-State Drives (SSDs) used in the Workstation under ATC clause.
7	Applications Compatible with the Workstation	Buyers may include the names of applications under ATC for which the workstation's configuration has been suitably assessed and certified to meet the required specifications.
For Sellers		
8	OEM Website Link/Part No for product verification	The OEM shall share the OEM website link with the buyer at the time of delivery. The offered model details/configuration should be available on their website. A unique device serial number shall also be provided at the time of supply, which is also mentioned on the product. The buyer/consignee shall be able to verify the complete product details, including configuration, through the shared OEM website link.

9	Changing or altering the configuration	Seller must refrain from changing or altering the configuration of the factory pre-loaded machine. The machine should be delivered to the Consignee in its original, factory-approved configuration.
10	Warranty	The seller shall furnish a valid warranty Certificate/Tag from the OEM to the purchaser, guaranteeing the product's coverage under the specified warranty terms. The warranty certificate should be verifiable through the OEM website/customer care center.
11	Compliance of extended producer's responsibility	With effect from 1.4.23, as per the E-waste rules 2022, EPR registration is mandatory for manufacturing entities. Therefore, all OEMs shall hold valid EPR registration, and the registration number should be reflected in the catalog parameter. OEMs shall ensure compliance with all responsibilities as per EPR registration applicable from time to time.
12	Mandatory / Statutory requirements as applicable	OEMs shall have to ensure compliance with the mandatory/statutory requirements as per the Government of India Notifications issued from time to time for hardware and software components, as applicable.
13	Operating System	It shall be the responsibility of OEMs to ensure that supplies are made with genuine operating systems.
14	Applications Compatibility with the Workstation	The seller shall ensure that the workstation is compatible with the specified applications. Requisite documents confirming compatibility from the application provider must be furnished upon request by the buyer.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

1. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. **Generic**

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- Copy of PAN Card.
- Copy of GSTIN.
- Copy of Cancelled Cheque.
- Copy of EFT Mandate duly certified by Bank.

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

- Inspection agency: BDL-QC.

2. Payment terms: 95% basic +100 % taxes within 30 days after receipt and acceptance of PO item and remaining 5% basic payment against submission of PBG (performance bank guarantee valid till warranty period + claim period of 3 months).

3."BDL reserves its right to release GST only after supplier's invoice/debit note is reflected in GSTR-2B/2A within the specified time limit mentioned in GST Law.

4. Delivery: Items to be delivered within 04 months from the date of receipt of placement of order.

5. The bidder should submit the compliance statement for all terms & conditions mentioned in the bid along with the bid documents.

6. This bid is under PAC. ONLY OEM/ OEM Authorized dealer can participate.

7. Bidder shall provide the OEM manufacturing authorization certificate along with the bid documents for bid qualification.

8. The successful bidder shall deliver the items to BDL stores, Visakhapatnam at free of cost.

9. Successful bidder has to submit the Security deposit for 5% of order value after placement of order.

10. The vendor participating in the tender should declare if demerged in the recent times, to declare the merger, nature of demerger for the assessment of the credentials for acceptance of your quotations, falling on which knowing of the demerger in the later stage by BDL, BDL will entitle the vendor for debarment.

11. BDL will not acknowledge receipt of goods or service as a valid supply/ service, until all mandatory documents listed in purchase Order (e.g., inspection report, free issue material consumption report, warranty certificate, ePBG, GST invoice) are provided. A checklist of submitted documents is required with each supply.

12. LD Clause: Time is the essence of the P.O and delivery should be strictly insisted upon according to the delivery schedule given in the SOs/POs. In the event the supplier fails to deliver the goods / service, within the stipulated delivery period, BDL reserves the right to recover from the supplier, LD and not by way of penalty an amount as detailed in terms and conditions. A sum of 0.5% of the price only of the stores (Including duties, taxes) which the supplier has failed to deliver as aforesaid for each week of delay or part thereof, subject to a maximum of 10%. In case of extension of delivery period, increase in taxes shall not be borne by BDL, if delay is attributable to vendor

13. AS 9100D Clause:

- Supplier shall not supply non-conforming product against specification.
- Supplier shall notify BDL of non-conforming processes, products or services and obtain approval for their disposition (i.e. rework, rejection etc.,).
- Supplier shall notify BDL of changes to manufacturing processes, products or services including changes of their external providers or location of manufacture and obtain BDL approval.
- Supplier shall retain the product related records (processes, quality records etc.,) up to 3 years.
- BDL, its customer and regulatory authorities having right of access to the applicable areas of all your facilities, at any level of supply chain, involved in our order and all applicable records.
- Supplier shall ensure that the persons carrying out the manufacturing of items under this purchase order be aware of product conformity requirements, product safety and importance of ethical behavior etc.
- Wherever drawing revisions are applicable, old drawings are to be returned to BDL or to be destroyed with an intimation to BDL.
- Wherever applicable, ESD controls to be followed for PCB and other electronics items.
- In case of any corrective action plan against non-conforming product reported/identified at any stage the same shall be brought to the notice of BDL for approval before its implementation.
- Supplier shall not use any suspected/detected counterfeit parts during any stage of manufacturing.
- Counterfeit parts shall not be supplied to BDL. If any counterfeit parts are received, severe action shall be initiated against the supplier.

· Vendor shall comply ISO 14001:2015 EMS for the PO

Note: Bidder should submit the items as per attached Specification.

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5. **Warranty**

Warranty period of the supplied products shall be 3 years from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

6. **Generic**

Manufacturer Authorization:Wherever Authorised Distributors/service providers are submitting the bid, Authorisation Form /Certificate with OEM/Original Service Provider details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid

7. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

8. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

9. **Generic**

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

10. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

11. **Forms of EMD and PBG**

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

BHARAT DYNAMIC LIMITED

Account No.

104531043010001

IFSC Code

UBIN0810452

Bank Name

UNION BANK OF INDIA

Branch address

BDL CAMPUS BRANCH, KANCHANABAGH, HYDERABAD, TELANGANA-500058

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

अस्वीकरण/**Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its

outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**

- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---